



E Roz <evanroz@gmail.com>

RE: 10-585 Corydon Ave

1 message

Celena Funk <celena.funk@thorwin.ca>

Fri, May 5, 2023 at 9:20
AM

To: Evan Rosner <evanroz@gmail.com>

Cc: "property.admin" <property.administration@thorwin.ca>

Good Morning Evan,

The Mobile Resident Manager was unaware that your storage locker had been grandfathered in prior to Thorwin Properties purchase of the building.

Should at any time we decide to remove the storage units we will apply through the Residential Tenancy Branch for a withdrawal of service.

In response to your initial concern a work order has been submitted to ensure access to your storage space.

Kind regards

Celena Funk

Property Manager



E-mail: celena.funk@thorwin.ca

Office: 204-222-2422

Direct: 204-594-5505

Fax: 204-594-5414

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www.thorwin.ca

1274 Archibald Street, Winnipeg, Manitoba, R2J 0Z3

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From: Evan Rosner <evanroz@gmail.com>

Sent: Thursday, May 4, 2023 3:56 PM

To: Celena Funk <celena.funk@thorwin.ca>

Cc: property.admin <property.administration@thorwin.ca>

Subject: Re: 10-585 Corydon Ave

Hello Celena,

It seems like you've been put into a tough position by your owners.

I understand that you are not personally responsible for the unethical practices undertaken by the corporation but you have chosen to align yourself with them and in doing so have turned a blind eye to the plight facing many Manitobans, myself included.

Unfortunately, it seems that Kris Thorkelson was not content with putting vulnerable cancer patients at risk by importing and concealing knowledge of [counterfeit chemotherapy drugs](#) in the United States and has instead chosen to practice aggressively exploitative corporate strategies, this time focusing disproportionately on low income Manitobans. This is a matter of public record and informs my opinion of any and all corporate actions conducted by Thorwin Properties.

Thorwin Properties has engaged in exploitative practices which have caused me extreme stress and will most likely cause me increased financial hardship. I am referring to the every year applications for rent increases above the guidelines which have been met by astonishingly and implausibly unfair RTB and RTC decisions in your favour. Also, the most recent variance application which I presume will result in both the storage facilities and laundry facilities being removed from [585 Corydon Ave](#) which negatively affects me as a tenant as both of those services are required and my suite does not have the capacity for either of those services. I have a plethora of other criticisms that I will register at our appeal hearing.

I am appealing both the rent above guidelines application May 23, 2023 and I will be submitting my appeal against the variance May 10, 2023.

In response to your questions, it seems that either your office has mishandled or misplaced crucial property information. When I took possession of this suite I was handed keys that gave me access to the

storage room and shown the storage locker associated with my suite, which I've occupied since then. Suggesting that that service is 'complimentary' needs to be backed up by legislative citation and historical documentation which either is in your possession or not.

1. Please cite the legislation that supports your claim that this situation would be considered a 'complimentary'.
2. Please outline your policy and procedures for the situation if my belongings are not removed from that space on the date to be indicated.
3. Please indicate which organization or individuals represent Thorwin Properties as legal counsel.

Litigation is an option that I am strongly considering.

Sincerely,

Evan Rosner

On Thu, May 4, 2023 at 2:22 PM Celena Funk
<celena.funk@thorwin.ca> wrote:

Hello Evan,

I feel like we may have gotten off on the wrong foot. I've just taken over this property and as of now I don't have any information surrounding an end to the use of that space.

It seems that you are jumping ahead as there has been no change, as such no notice of a change is required currently.

I did mention there was some digging to be done to locate your original lease, as I was reviewing your file in our system as well as our paper file, I found no reference of you being assigned a storage space. Would you have any documentation or email referencing when you were assigned this storage locker?

I'm not sure I understand the reason you are requesting the information regarding our legal council.

Kind regards

Celena Funk

Property Manager



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From: Evan Rosner <evanroz@gmail.com>

Sent: Thursday, May 4, 2023 12:36 PM

To: Celena Funk <celena.funk@thorwin.ca>

Subject: Re: 10-585 Corydon Ave

Celena,

Thank you for your response and for providing the lease agreement.

When do you expect to provide me with notice to remove my belongings? It appears that tenants in Manitoba have a reasonable expectation for continuation of services such as storage facilities when long term tenants and when not explicitly informed about change in services. At least, according to my legal sources. Please cite the legislation that supports your claim that this situation would be considered a 'complimentary'.

On the topic of legality, please outline your policy and procedures for the situation if my belongings are not removed from that space on the date to be indicated.

Furthermore, please indicate which organization or

individuals represent Thorwin Properties as legal counsel.

I wish you all the best,

Evan Rosner

On Thu, May 4, 2023 at 12:12 PM Celena Funk
<celena.funk@thorwin.ca> wrote:

Good afternoon Evan,

It took some digging to find your original lease (see attached) with Winpark but upon review the storage space has not been referenced in your lease.

I'm also attaching the Notice to New Tenant which does not have storage checked off as an inclusion.

Based on what I can see the storage was offered complimentary, due to this there is no legal requirement by Thorwin Properties to sustain this.

You are more than welcome to continue to use the space until such time as we provide notice to remove your belongings.

Please don't hesitate to reach out should you have any other

questions.

Kind regards

Celena Funk

Property Manager



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From: Evan Rosner <evanroz@gmail.com>

Sent: Thursday, May 4, 2023 10:17 AM
To: Celena Funk <celena.funk@thorwin.ca>
Subject: re: [585 Corydon Ave](#)

Greetings,

I've just been informed by the new resident manager that my storage space is not included with my most recent lease agreement. I'm not sure how this is possible as I have been a resident here for many years and it has always been included. Can you please identify the year and lease agreement in which the storage space service has been removed?

Thank you,

Evan Rosner

10-[585 Corydon Ave](#)